A15

CASE N0. 18281/2013

IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE HIGH COURT)
CAPE TOWN: Thursday 05 December 2013
Before the Honourable Mr Acting Justice Manca

In the matter between:

STEFINA JACOBA NAISBY For an order presuming the death of JOHN ROBERTSON NAISBY	Applicant

and

NEDBANK LIMITED (Registration No. 1951/000009/06)	1st Respondent
ALAN NAISBY	2nd Respondent
CAROLYN HIBBERT	3rd Respondent

Having heard the Legal Representative for the Applicant and having read the documents filed of record;

IT IS ORDERED:

That the rule nisi granted on 7 November 2013 is made final.

BY ORDER OF THE COURT

WESTERN CAPE HIGH COURT
FOURTH DIVISION
2013 -12- 09
CAPE TOWN/KAAPSTAD
WES-KAAP HOE HOF

COURT REGISTRAR

348 MacGregor Stanford Kruger Inc
CAPE TOWN

/ec

COLH

IN THE HIGH COURT OF SOUTH AFRICA
(Western Cape High Court, Cape Town)

Case No: 18281 / 2013

In the application of:

STEFINA JACOBA NAISBY — Applicant

WESTERN CAPE HIGH COURT
GENERAL OFFICE
2013 -12- 03
CAPE TOWN/KAAPSTAD
WES-KAAP HOË HOF

For an order presuming the death of

JOHN ROBERTSON NAISBY

and

NEDBANK LIMITED (Registration No. 1951/000009/06) — First Respondent

ALAN NAISBY — Second Respondent

CAROLYN HIBBERT — Third Respondent

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1. That a *Rule Nisi* do issue calling for all interested parties to show cause, if any, on a date to be determined by the above Honourable Court, why a final order should not be granted in the following terms:

1.1 that John Robertson Naisby born 2 May 1929 (Identity Number 2905025075084) of 11 Willow Crescent, Bloubergrant, Cape Town, Western Cape be presumed dead;

1.2 that pending the appointment of an Executor to the estate of John Robertson Naisby, Applicant be granted the following powers and authority:

1.2.1 to operate and conduct the bank cheque account of John Robertson Naisby held at the Table View branch of the First Respondent, account number 1088026907, including the signing of cheques, internet banking and the withdrawal and depositing of funds;

1.2.2 to expend monies belonging to John Robertson Naisby for the maintenance and support of the Applicant;

1.2.3 to take any proceedings which may be necessary for the due and proper administration of the property of John Robertson Naisby.

and
Bank 2
Banking Mall
1st Floor
69 Blaauwberg Road
Bayside Centre
Table View
Western Cape

AND TO: **SECOND RESPONDENT**
ALAN NAISBY
Marriott Executive Apartments
399 Nanjing Road West
Shanghai,
Peoples Republic of China
Email: anaisby@gmail.com

AND TO: THIRD RESPONDENT
CAROLYN HIBBERT
91 Front Street,
East Bolton,
Tyne & Wear,
NE36 0FA,
United Kingdom
Email: Carolyn.naisby@hotmail.co.uk

payment. Till Feb 12. (3 months) 48

NEDBANK
Ltd Reg No 1951/000009/06
33 Hoofd Street Braampark Forum 4 Braamfontien
PO Box 31015 Braamfontein 2017 South Africa
Nedbank clients: Tel 0860 555 111
Go Banking clients: Tel 0860 654 222
NedDialogue clients: Tel 0860 116 700
Fax 011 710 3102

Nedbank Limited
Reg No. 1951/000009/06
PARKLANDS
10 JUL 2013
RECEIVED
16 - 99 - 45

"SN6"

To NAISBY S J

11 WILLOWS CRESCENT
BLOUBERGRANT
MILNERTON
07441

Account Number 1088026346 Date 2013/07/09 Time 10:56:07

Statement Number 375

Date	Description	Charge	Debit	Credit	Balance	Branch
9 Feb 2012	BROUGHT FORWARD BALANCE				476.39	
10 Feb 2012	KAP NEDTERM 112336059998			1,000.00	1,476.39	0998
13 Feb 2012	MEDI-CLINIC MI4923112100408441		-161.16		1,315.23	3683
13 Feb 2012	PNP TABLEVIEW 4923112100408441		-48.95		1,266.28	3683
14 Feb 2012	mr naisby			1,410.00	2,676.28	0960
14 Feb 2012	FRUIT & VEG CI4923112100408441		-43.84		2,632.44	3683
14 Feb 2012	PNP TABLEVIEW 4923112100408441		-41.95		2,590.49	3683
15 Feb 2012	mr naisby			150.00	2,740.49	0960
15 Feb 2012	C*Telkom Table4923112100408441		-150.00		2,590.49	3683
17 Feb 2012	PNP TABLEVIEW 4923112100408441		-25.80		2,564.69	3683
18 Feb 2012	KAP NEDTERM 112336059998			1,000.00	3,564.69	0998
18 Feb 2012	CLICKS 161 PAR4923112100408441		-102.80		3,461.89	3683
20 Feb 2012	CURRENT-1088026907		-3,000.00		461.89	0960
21 Feb 2012	FRUIT & VEG CI4923112100408441		-75.33		386.56	3683
22 Feb 2012	CITIBANK STATE PENSPENSION			1,688.82	2,075.38	0960
24 Feb 2012	Nedgroup Collective Investment			10,000.00	12,075.38	0960
24 Feb 2012	MOMENTUM 201819950			946.18	13,021.56	0960
24 Feb 2012	RENTEKOERS GEWYSIG NA 0,20%			0.00	13,021.56	0088
25 Feb 2012	RENTE 27/01 - 24/02			0.07	13,021.63	0088
25 Feb 2012	FRUIT & VEG CI4923112100408441		-71.22		12,950.41	3683
5 Mar 2012	C*DISCHEM BAYS4923112100408441		-78.10		12,872.31	3683
	CARRIED FORWARD BALANCE				12,872.31	

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NEDBANK LIMITED
Nedbank Limited Reg No 1951/000009/06, VAT Reg No 4320116074, 135 Rivonia Road, Sandown, Sandton, 2196, South Africa.
Directors: Dr RJ Khoza (Chairman) MWT Brown (Chief Executive) TA Boardman TCP Chikane GW Dempster (Chief Operating Officer) MA Enus-Brey Prof B de L Figaji DI Hope** A de VC Knott-Craig WE Lucas-Bull PM Makwana NP Mnxasana RK Morathi (Chief Financial Officer) JK Netshitenzhe JVF Roberts* GT Serobe MI Wyman* (*British) (**New Zealand)
Company Secretary: GS Nienaber 17.11.2011

We subscribe to the Code of Banking Practice of The Banking Association South Africa and, for unresolved disputes, support resolution through the Ombudsman for Banking Services. We are an authorised financial services provider. We are a registered credit provider in terms of the National Credit Act (NCR Reg No NCRCP16).

NEDBANK

"SN 7(1)" 96

Statement date	25 February 2012
Frequency	Monthly
Statement period	
From	26 January 2012
To	25 February 2012
Total number of pages:	2

Mr NAISBY J R

Account type: CURRENT ACCOUNT Account number: 1088026907 Page: 2 of 2

Cash Fee Formula	Service Fee Formula
R 1.25 per R100 or part there of	R 4.35 for the first R100, then R 1.25 per R100 for remaining value, with a Maximum of R25.00.

Bank Charges for the period 26 January 2012 to 25 February 2012

Narrative Description	Item Cost	VAT	Total
Electronic banking fees	78.95	11.05	90.00
Other charges	0.00	0.00	0.00
Total Charges			**90.00**

an List No	Date	Description/Narrative	Fees	Debits	Credits	Balance
	27/01/2012	Opening Balance				R40,503.99
000245	27/01/2012	INTEREST 28/12 - 26/01			17.71	R40,521.70
	27/01/2012	INVESTECAM0013784236			4,061.55	R44,583.25
	27/01/2012	VAT 28/12-26/01 = R4.42			0.00	R44,583.25
	28/01/2012	CITIBANK LEGAL AND PENSION			1,973.66	R46,556.91
	01/02/2012	DISCHEALT E3201208 -78179306		2,952.00		R43,604.91
	01/02/2012	AON N4162622*001L14896		857.61		R42,747.30
	02/02/2012	INT JUSTINVEST 196330379995			254.79	R43,002.09
	02/02/2012	142 CHEQUE CASHED		1,250.00		R41,752.09
	02/02/2012	CAPE TOWN FISH4923112100476729		191.00		R41,561.09
	06/02/2012	V*TABLE Vi TT 4923112100476729		1,000.00		R40,561.09
	06/02/2012	RATES		487.88		R40,073.21
	07/02/2012	M*KULULA CO 4923112100476729		659.00		R39,414.21
	09/02/2012	TRAVELWAYS - P4923112100476729		894.00		R38,520.21
	10/02/2012	TRAVELWAYS - P4923112100476729			659.00	R39,179.21
	14/02/2012	s naisby		1,410.00		R37,769.21
	14/02/2012	ESKOM 3063680017		370.80		R37,398.41
	15/02/2012	FLEET STREET P4923112100476729		499.95		R36,898.46
	15/02/2012	s naisby		150.00		R36,748.46
	15/02/2012	M-CHOICE 0061700643-06976271		556.72		R36,191.74
	16/02/2012	FSP 9401700-8129789		57.00		R36,134.74
16	17/02/2012	ATM CASH 4923112100476729	18.00	1,500.00		R34,634.74
	18/02/2012	ATM CASH 4923112100476729	18.00	1,500.00		R33,134.74
	20/02/2012	S J NAISBY-1088026346			3,000.00	R36,134.74
	20/02/2012	ATM CASH 4923112100476729	18.00	1,500.00		R34,634.74
	21/02/2012	GAME EASTGATE 4923112100476729		966.47		R33,668.27
	21/02/2012	VERIMARK EASTG4923112100476729		898.90		R32,769.37
	21/02/2012	ESKOM 3063680017		370.80		R32,398.57
	22/02/2012	CITIBANK STATE PENSPENSION			3,057.52	R35,456.09
	22/02/2012	ATM CASH 4923112100476729	18.00	1,500.00		R33,956.09
	23/02/2012	ATM CASH 4923112100476729	18.00	1,500.00		R32,456.09
	24/02/2012	HH VEREENIGING4923112100476729		2,938.00		R29,518.09
	24/02/2012	PNP SOUTHGATE 4923112100476729		2,244.70		R27,273.39
	25/02/2012	INTEREST 27/01 - 24/02			15.41	R27,288.80
	25/02/2012	VAT 27/01-24/02 = R11.05			0.00	R27,288.80
	25/02/2012	ATM/SSD FEE 27/01 - 24/02		90.00 *		R27,198.80

Closing Balance R27,198.80

17-2-2012
24-2-2012

SN

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NEDBANK

Statement date	26 March 2012
Frequency	Monthly
Statement period	
From	25 February 2012
To	26 March 2012
Total number of pages:	2

Mr NAISBY J R

Account type: CURRENT ACCOUNT Account number: 1088026907 Page: 2 of 2

Cash Fee Formula	Service Fee Formula
R 1.25 per R100 or part there of	R 4.35 for the first R100, then R 1.25 per R100 for remaining value, with a Maximum of R25.00.

Bank Charges for the period 25 February 2012 to 26 March 2012

Narrative Description	Item Cost	VAT	Total
Other charges	0.00	0.00	0.00
Total Charges			**0.00**

Tran List No	Date	Description/Narrative	Fees	Debits	Credits	Balance
	27/02/2012	Opening Balance				R27,198.80
000247	27/02/2012	INVESTECAM0013812868			4,061.55	R31,260.35
	28/02/2012	CITIBANK LEGAL AND PENSION			1,909.67	R33,170.02
	01/03/2012	DISCHEALT E3201208 -79219235		2,952.00		R30,218.02
	01/03/2012	AON N4162622*001L43214		857.61		R29,360.41
	02/03/2012	INT JUSTINVEST 196330379995			238.36	R29,598.77
	15/03/2012	M-CHOICE 0063178466-06976271		556.72		R29,042.05
	16/03/2012	FSP 9401702-8129789		57.00		R28,985.05
	20/03/2012	CITIBANK STATE PENSPENSION			2,985.20	R31,970.25

Closing Balance R31,970.25

Petrus André Swarts. male identity Number 6112035251088.
Residing at: 51 Ditedu Ave 37 Tuscan Veins Wns. Bailypark Potchefstroom.
tel: 0799167634
Working at: North West University Ekenstreed Nie Buit Potchefstroom

States under oath in English that.

1
I am an adult male residing at above adress. I am a member on internet site, Dating Buzz SA. Dating Buzz internet site is a site where one can meet friends and persons of opeste sex. I am a member of the site for about two and a half years. meeting from the year 2017.

2
During January 2020. I was online on the Dating Buzz SA and then made Contact with a lady ~~Sabi~~ Sabrinah. We started chatting on-line and she excepted my invite

3
After she had excepted my invite I provided her with my contact number. She did not provide me her contact number on online

but had send me her contact number on my cellphone by watsup The number she had send to me was .0812433756. and the number is still on my phone.

4

After she provided me with her cellphone number we started with conversations on watsup At a stage she mentioned to me that she was staying in Melville Johannesburg and that her Grandkids was staying just up the street. I said to her that I was staying in Rosebank. Later we made arrangements to meet each other and it was discussed that we will meet at a mall in Kenacia Johannesburg. The reason to this was that it would have been almost the middle for each of us. This was on a Saturday and it would have been our first meeting.

5

This meeting between us did not happened as I have decided to cancel the meeting. and after the cancelation there was no contact or discussions between

us again.

This is all I can declare
I know and understand the
contents of this declaration.
I have nothing against the
prescribed oath and I consider
the prescribed oath to be
binding to my conscience.
Potchefstroom
2020/11/18
09:20.

B wants

I CERTIFY THAT THE ABOVE STATEMENT WAS TAKEN BY ME AND THAT THE DEPONENT HAS ACKNOWLEDGED THAT HE/SHE KNOWS AND UNDERSTANDS THE CONTENTS OF THE STATEMENT. THE STATEMENT WAS SWORN TO ME AND BEFORE HE AND DEPONENTS SIGNATURE/MARK/THUMBPRINT WAS PLACED THEREON IN MY PRESENCE.

at Potchefstroom on 2020/11/18 at 09:20
(Signature) E Vlaar
Commissioner of Oaths:
Name in Block Letters: K Vlyer
Business Address (Street Address): SAPS Detached Crime Head office Pretoria
Rank: Colonel

SA POLICE SERVICE

N/A

Boangacard

X _____ N/A

Suspect Interpreter